FROM	[OPRD Public Records]
TO	Robert Samuel White
DATE	November 20, 2025, 3:48 PM PT
SUBJECT	**Fw: Notice of Violation - Failure to Respond to Public Records Request (Submitted August 22, 2025)**
ATTACHED	public records request response robert samuel white .pdf
DOCUMENT	01KAHTQ0ZG656XCF1G2Q9X15KY

Mr. White,
I received your message regarding your public records request from August 22, 2025. Below is an image of the response we provided to you on August 29, 2025, and attached is the information we provided at the time regarding your initial request.

OPRD has not received any response from you regarding whether you would like to refine the request or provide payment for the additional staff time necessary to complete the request as written. Once you provide that information, will develop a plan and timeline for completion of this request.

Please let me know if you have questions.

Katie

[OPRD Public Records]
Government Relations & Interim Communications Manager

Oregon Parks and Recreation Department
725 Summer St. NE, Suite C, Salem OR 97301

From: Robert Samuel White <rsw@rswfire.com>
Sent: Saturday, November 15, 2025 8:30 AM
To: PUBLICRECORDS Oprd * OPRD <oprd.publicrecords@oprd.oregon.gov>
Cc: SUMPTION Lisa * OPRD <>
Subject: Notice of Violation - Failure to Respond to Public Records Request (Submitted August 22, 2025)

Dear Public Records Officer and Director Sumption,
On August 22, 2025, I submitted a comprehensive public records request pursuant to Oregon Revised Statutes Chapter 192 seeking documentation related to OPRD volunteer program operations,

management practices, and administrative communications.
It has now been 85 days since that request was submitted.
Oregon law is unambiguous regarding agency obligations:
ORS 192.329(1) requires public bodies to acknowledge receipt of a public records request "without unreasonable delay" and to provide a reasonable estimate of time and fees.
ORS 192.329(3) requires completion of requests "within a reasonable time."
ORS 192.338 establishes that failure to respond within a reasonable time constitutes denial of the request.
ORS 192.355 provides statutory remedies including court-ordered compliance and attorney fees.
TIMELINE OF OPRD'S NON-COMPLIANCE
August 22, 2025: Public records request submitted via email
August 28, 2025: OPRD representative contacted me by phone (not in writing) attempting to narrow the scope of the request
August 28, 2025: I declined to limit scope and requested all communications in writing
August 28, 2025 - November 15, 2025: Complete silence from OPRD - no written response, no acknowledgment, no fee estimate, no timeline, no records produced
LEGAL VIOLATIONS
OPRD's conduct constitutes clear violations of Oregon Public Records Law:

1. Failure to acknowledge receipt in writing as required by ORS 192.329(1)
2. Failure to provide fee estimate as required by ORS 192.324
3. Failure to establish reasonable timeline for response
4. Failure to produce any responsive records within reasonable time
5. Improper attempt to negotiate scope via phone rather than written correspondence
6. Ghosting requestor after refusing informal scope limitation

85 days of complete silence is not "reasonable" under any interpretation of Oregon law.
PATTERN OF INSTITUTIONAL OPACITY
This non-response is consistent with OPRD's documented pattern of:

* Refusing to investigate substantiated complaints
* Avoiding written documentation of institutional decisions
* Deploying informal pressure tactics rather than transparent processes
* Abandoning accountability when informal methods fail

The same institution that:

* Dismissed a volunteer without written documentation of cause
* Refused to acknowledge documented evidence of staff misconduct
* Provided only vague, legally meaningless responses to formal complaints

* Has now ignored a lawful public records request for nearly three months

This is not administrative delay. This is institutional defiance of legal obligations.

DEMAND FOR IMMEDIATE COMPLIANCE

I hereby demand that OPRD:

1. Immediately acknowledge this public records request in writing
2. Provide a complete fee estimate for all responsive records
3. Establish a definite timeline for production of records
4. Explain in writing the legal basis for 85 days of silence
5. Produce all responsive records not subject to valid exemptions
6. Cite specific statutory authority for any claimed exemptions

This demand must be satisfied within 10 business days of receipt of this letter.

NOTIFICATION OF INTENT TO PURSUE LEGAL REMEDIES

If OPRD fails to comply with this demand within 10 business days, I will pursue all available remedies under Oregon law, including:

* Filing a petition pursuant to ORS 192.355 to compel disclosure
* Seeking attorney fees and costs as provided by statute
* Requesting civil penalties for willful violation of public records law
* Notifying the Oregon Department of Justice Public Records Advocate
* Notifying the Oregon Government Ethics Commission
* Referring this matter to the Oregon Legislature's Committee on Conduct
* Making this complete record of non-compliance publicly available

PUBLIC INTEREST STATEMENT

The public interest in OPRD's compliance with this request has only intensified since August:

* OPRD continues soliciting volunteers while refusing transparency about volunteer management
* Budget crisis deepens while agency avoids accountability for institutional dysfunction
* Former volunteers continue reporting similar patterns of institutional abuse
* Director Sumption's response to my documented complaints established precedent of institutional protection over accountability

The public has a right to know how their state parks agency treats unpaid volunteers, manages taxpayer resources, and responds to substantiated complaints.

FINAL NOTICE

This letter serves as final notice before pursuing formal legal action.

OPRD has demonstrated through silence that it does not intend to comply voluntarily with Oregon

Public Records Law. That refusal to comply is itself a matter of significant public interest and will be documented accordingly.

Every day of continued non-compliance strengthens the public record that Oregon State Parks operates with contempt for legal transparency requirements.

You have 10 business days to respond.

All communications regarding this matter must be in writing. I will not participate in phone calls or informal negotiations designed to avoid creating written records.

Preserve all documents.

Sincerely,

Robert Samuel White

https://rswfire.com/honeyman